



THE JAMAICA CONSTABULARY FORCE

Policy and Standard Operating Procedures for the Management of Body-worn Cameras

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1.0 Introduction

The Jamaica Constabulary Force (JCF), in its service to the citizens of Jamaica, recognized the critical roles of accountability and transparency in its service delivery and legitimacy. Being attuned to evolving technologies, the JCF is cognizant of the support that the independence of Body Worn Cameras (BWC) would bring to its priority of increasing accountability and professional standards.

Policing in other jurisdictions is replete with the independence that video footage from a BWC provides, running the gamut from vital evidence to verification of an opportunity for training. Recordings from BWCs can be seen as that ‘built-in impartial witness’ that allows for increased efficiency and reliability thereby engendering trust and confidence in the actions and accounts provided by the JCF.

BWCs used by a members whilst performing their duties, will engender transparency and accountability in their interactions with citizens. BWCs serve as valuable tools in policing as they capture accurate police/public interactions and assist in arriving at the truth in instances of complaints or queries.

2.0 Purpose

This document outlines the JCF’s policy and standard operating procedures for procuring, issuing, caring for, activating, and maintaining BWCs, related equipment and accessories, and managing BWCs’ recordings.

3.0 Scope

This policy and standard operating procedures shall apply to all sworn and unsworn members. It covers the issuance, care, maintenance activation and disposal of BWCs, related equipment and accessories, and the management of BWCs’ recordings obtained from policing operations.

4.0 Policy Statement

It is the policy of the JCF that:

- 4.1 BWCs, related equipment and accessories shall be used to support the management of policing operations, particularly those where members are required to interact with the public;
- 4.2 The management of BWCs and related recordings shall be in conjunction with the Constitution of Jamaica, all relevant local laws, Force policies, Standard Operating Procedures, directives and guidelines;

- 4.3 BWCs shall be used to enhance transparency, safeguard the rights of members of the JCF, citizens of Jamaica they served and support the administrative decisions;
- 4.4 The BWCs and related equipment, footage (i.e. images, videos, and audio) recorded or otherwise produced from the device shall be the property of the JCF and
- 4.5 Disciplinary actions may be brought against members who fail, neglect or refuse to use the BWC, related equipment or accessories, or manage recordings in accordance with this policy and SOPs.

5.0 Abbreviations & Acronyms

BWC	Body-worn Camera
CFCU	Communication Forensics and Cybercrime Division
GoJ	Government of Jamaica
JCF	Jamaica Constabulary Force
LAD	Legal Affairs Division
PRDB	Planning, Research and Development Branch
SRMS	Station Record Management System

6.0 Definitions

For the purpose of this policy and SOPs, the following definitions are adopted:

6.1 Activate

The action or process of making the BWC active or operative

6.2 Body-worn Camera (BWC)

A wearable device that is used to record audio and video of events in which law enforcement officers are involved whilst on duty

6.3 Body-worn Camera (BWC) Administrator

a member who has been trained and authorised to issue, receive, dock, maintain, and undertake all related duties and responsibilities in each formation as outlined in this policy as it pertains to BWC

6.4 Docking Station

a compact device that serves as a portable charger for BWCs and facilitates the uploading of footage from the BWC to computer servers

6.5 Footage

images, videos and audio recorded by the BWC

6.6 Member

all sworn and authorized personnel of the JCF.

6.7 Ready-state

the period in which a BWC is powered-on, affixed to work dress and ready to start recording

6.8 Related equipment and accessories

all supporting devices, including the docking station and carrying case

7.0 Responsibilities

The following summarises key responsibilities:

7.1 **Commissioner of Police or a designee** has the responsibility for deciding whether or not a request for video footage must be released to a member of the public (external stakeholder/agencies).

7.2 **The Deputy Commissioner of Police, Strategic Operations Portfolio** has the responsibility to:

7.2.1 collaborate with the Assistant Commissioner of Police, Technology Branch, to determine the distribution of BWCs to formations based on need;

7.2.2 provide oversight of the acquisition, inventory, and maintenance of the BWCs and related equipment and accessories within the JCF;

7.2.3 monitor, measure and evaluate the usage of BWCs and video footage and

7.2.4 review applications from external agencies for footage/recording requests and advise the Commissioner of Police accordingly. This shall be done in collaboration with the Inspector General and IPROB.

7.3 **The Deputy Commissioner of Police, Force Development and Logistics Portfolio (FDLP)** has the responsibility to ensure the procurement of adequate numbers of BWCs, related equipment and accessories and computer servers for use in the JCF.

7.4 **The Deputy Commissioner of Police, Inspectorate and Professional Standards Oversight Bureau (IPROB)** has the responsibility for reviewing applications from external agencies to request footage/recordings in collaboration with DCP FDLP.

7.5 **Assistant Commissioner of Police, Technology Branch** has the following responsibilities:

7.5.1 establish and manage the inventory, distribution, disposal and maintenance of all BWCs, related equipment, accessories and servers island-wide;

- 7.5.2 ensure that members are trained in the use, care and operation of BWCs;
 - 7.5.3 ensure that systems are in place for the store, access, retrieve and back up data files from the BWC servers ;
 - 7.5.4 ensure that periodic review and inspection of systems are conducted;
 - 7.5.5 institute the necessary arrangements for the maintenance and care of BWC's, related equipment and accessories in keeping with their manufacturers' guide;
 - 7.5.6 ensure that user accounts and authorisations are created for the different levels of access to BWC video footage;
- 7.6 **Divisional and Formation Commanders** has the following responsibilities:
- 7.6.1 accessing and reviewing BWC recordings/footage of encounters between the police and the public within their areas of command for the purposes of investigation and proper management of personnel and operations;
 - 7.6.2 manage the use, care and storage of BWCs and related equipment and accessories under their command;
 - 7.6.3 ensuring that inventory of BWCs, related equipment and accessories are consistent with Force Policies and SOPs;
 - 7.6.4 ensuring adequate numbers of BWC Administrators are selected, trained and attached at respective Formations to which the BWCs are assigned;
 - 7.6.5 ensuring that only members who are trained in the use and care of BWCs are issued;
 - 7.6.6 ensuring authorised access to recording/footage is granted to members in collaboration with the Assistant Commissioner of Police (ACP) Technology Branch;
 - 7.6.7 ensuring that members equipped with BWCs utilise them in accordance with this policy and SOPs;
 - 7.6.8 ensuring members are held accountable for any breach of this policy and institute the appropriate disciplinary actions; and
 - 7.6.9 conducting monthly inspections of the BWC's and related equipment and accessories under their command.
- 7.7 **The Divisional Crime Officer** is responsible for reviewing applications from investigators under their command to access footage/recordings related to criminal investigations and forward their recommendation to the ACP Technology Branch for release.
- 7.8 **The Administrative Officer** is responsible for reviewing applications from members under their command to access footage/recording and forward their recommendation to their respective Divisional Commander.
- 7.9 **The BWC Administrator** is responsible for the following:

- 7.9.1 documenting the movement of BWCs, related equipment and accessories to include their issue, retrieval, docking (charging and uploading of recordings) and monitoring of their physical condition.
 - 7.9.2 ensuring the timely submission of related reports.
 - 7.9.3 conducting daily inspections and function checks on BWCs to ensure they are in good operating condition and perform basic troubleshooting procedures when an error notification is displayed on the device.
 - 7.9.4 conducting investigations into reports of lost or damaged or any malfunctioning BWCs, related equipment and accessories and submit a report to the Technology Branch and their Divisional or Formation Commanders.
 - 7.9.5 maintaining the *JCF Body-worn Camera Register* (Appendix 1) by recording the relevant information and proper cross-referencing.
 - 7.9.6 issuing BWCs and related equipment and accessories only to members who are trained in the use and care.
 - 7.9.7 submitting monthly reports on all BWC, related equipment and accessories assigned to the Division/Formation to the Divisional/Formation Commander.
- 7.10 **A member** has the following responsible to:
- 7.10.1 ensure that the BWC is operated and maintained according to the manufacturer's instructions and this policy and standard operating procedures;
 - 7.10.2 immediately notify his/her supervisor and the BWC Administrator of any malfunction of the BWC, or if any related equipment or accessories are lost or damaged and submit a report outlining the circumstances; and
 - 7.10.3 for any loss or damage of the BWC while in his custody.

8.0 Standard Operating Procedures

The management of all BWCs and related equipment and accessories shall be in accordance with the following:

8.1 Distribution of BWC to Divisions and Formations

- 8.1.1 The BWCs shall be distributed to Divisions and Formations based on availability and need.
- 8.1.2 An inventory shall be established and maintained to capture the distribution of BWCs and related equipment and accessories at the various Divisions and Formations.

8.2 Issuing of BWC and Related Equipment and Accessories

Upon issuing BWC and related equipment and accessories, the following procedures shall be adhered to:

- 8.2.1 before issuing the BWC, checks are made to ensure it is in proper working order, the battery is fully charged, and the current date and time is displayed, where applicable.
- 8.2.2 an entry is made in the Station Diary or Station Records Management System (SRMS) recording the name of the officer receiving the BWC, nature of duty, time issued, patrol zone, serial number, battery status and physical condition of BWC.
- 8.2.3 an entry is made in the BWC Register documenting the date and time of issue, serial number of the BWC and particulars of the member.
- 8.2.4 The member shall sign in the appropriate section of the BWC Register.
- 8.2.5 On receipt of the BWC, the member shall:
 - i. conduct a function test.
 - ii. report any malfunction observed to the BWC Administrator;
 - iii. review entry in the BWC Register;
 - iv. sign the appropriate section in the BWC Register; and
 - v. ensure the safety and care of the device while in his/her possession.
- 8.2.6 Only trained and authorised members shall be issued with and use BWCs, related equipment and accessories.

8.3 Activation and Use of the BWC during the tour of duty

Members are required to wear and activate the BWC where required during their tour of duty. The member shall:

- 8.3.1 securely affix the BWC in the prescribed manner on their work dress in a location where optimum frontal viewing for recording will occur;
- 8.3.2 power on the BWC and have it in the ready state upon commencement and throughout the tour of duty;
- 8.3.3 use the BWC to record interactions between the police and the public during the tour of their duties for accountability and where it is consistent with this policy and the law.

NB: If a member fails to activate the BWC or interrupts the recording, the member shall submit a written report outlining the reason(s) and may face disciplinary action for any breach detected.

- 8.3.4 inform individuals that they are being recorded unless it is not practicable to do so;
- 8.3.5 keep the BWC activated until the activity or encounter has concluded or when the member is satisfied that no further information needs to be captured.
- 8.3.6 in situations of sudden and imminent threat where officer safety is at stake, the BWC may be used as soon as is practicable. ***Members are not***

expected to jeopardise their safety to activate the BWC but must make every effort to commence recording as soon as it is safe to do so (a written report outlining the circumstances will be required) and

8.3.7 Where a BWC recording is about to stop by the member during an interaction, the member should verbally note this on the recording before doing so, and a formal report should be submitted after duty.

8.4 Handing over of BWC and Related Equipment and Accessories on Conclusion of Duty

Upon the completion of duty, BWC and related equipment and accessories shall be handed over in the following manner:

8.4.1 the BWC shall be handed over to the BWC Administrator, who will cross-reference the Station Diary/SRMS entries and update the BWC register. The member handing over the BWC must sign the register.

8.4.2 The member must make a formal report to the BWC Administrator on:

- i. incidents that may result in complaints, court action, further investigation or any incident that was recorded on the BWC during the tour of duty;
- ii. any incidents that warranted the use of BWC but the device was not used; and
- iii. any malfunction, failure or any incident of potential damage to the BWC.

8.4.3 On receipt of the BWC from the member, the BWC Administrator shall:

- i. inspect the device to ensure it is in good working condition and there is no visible damage;
- ii. place the BWC on the dock to be charged and for uploading of video footage;
- iii. where a BWC is malfunctioning, and any of its related equipment or accessories has been damaged, lost, destroyed, stolen, unaccounted for or otherwise, an entry regarding the circumstances shall be made in the Station Diary or SRMS and the BWC Register; and
- iv. An investigation shall be conducted, and a report shall be submitted to the ACP Technology Branch.

8.5 Retention and Handling of BWC Recordings

For effective management of storing and handling of BWC recordings, the following shall apply:

8.5.1 retention and handling of video footage from the BWC shall be in keeping with the Evidence (Amendment) Act; Data Protection Act; JCF's Use of Digital Media in Criminal Investigations Policy; Communication

Forensics and Cybercrime Unit (CFCU) Standard Operating Procedures; and other relevant policies and guidelines.

8.5.2 recordings from BWC shall be kept for **up to ninety (90) days** before consideration for deletion. In instances where footage is required for a specific investigation, it may be kept for the duration of the process.

8.5.3 where an application for accessing video footage was received within **ninety (90) days** that specific footage shall not be deleted but be retained to be released upon approval.

8.6 Storage of Body-worn Camera

To ensure the proper security and storage of BWCs, the following shall apply:

8.6.1 BWCs shall be stored in accordance with their manufacturers' instructions and guidelines.

8.6.2 when BWCs are not assigned to personnel for duty, they shall be placed in the docking stations. The designated BWC Administrator for each shift shall be responsible for their safe custody.

8.9 Security of BWC Video Footage

8.9.1 Video Footage from BWC can only be accessed by authorised persons upon application.

8.9.2 The release of video footage will be granted through protocols outlined in this policy and SOPs.

8.9.3 Periodic reviewing and updating of the list of persons granted access to the BWC server.

8.9.4 The BWC Administrator shall ensure that data is uploaded immediately upon receiving the BWC from the member.

8.9.5 The list of persons granted access to the BWC servers shall be periodically reviewed and updated.

8.10 Access of BWC Footage/Recordings by Internal and External Stakeholders/Agencies

Where external stakeholders request video footage, access may be granted in keeping with relevant legislation and protocols where these exist. Request for access shall be made **within ninety (90) days** from the upload date. The following shall apply:

8.10.1 Internal Stakeholder/Agencies

Access for evidentiary, administrative, training purposes or any other reasons by law may be granted to Divisional/Formation Commanders, Crime Officers, and Investigating Officers. The following shall apply:

- a. a member may be granted access to view footage of which they are the subject of recordings provided that there is no investigation in which the member is a suspect. Access will be granted through their respective Divisional and Formation Commanders upon submitting an application.
- b. where a copy of the BWC footage is required for criminal or administrative investigation, the investigating officer shall apply with the requisite justification to the Crime Officer or Administrative Officer, respectively, **within ninety (90) days** of the incident.
- c. the application must be reviewed by the Crime Officer, the Administrative Officer, or their designee within **three (3) days** of receipt. They will then forward it along with their recommendation to the ACP Technology Branch.
- d. all requests for footage/recording must be reviewed, and where the release is not likely to compromise any investigation or adversely impact the human rights or dignity of others, the release of all or part of the requested footage shall be done.
- e. where video footage was reviewed and it is established that it would compromise an investigation and adversely impact the human rights or dignity of others, it should not be released. A detailed report of this finding must be submitted.
- f. access to BWC recordings for court and investigations shall be in keeping with legislation, force policies and guidelines.
- g. all requests for video footage to ACP Technology Branch must be reviewed and released where practicable **within fourteen (14) days** of receiving such application.

NB: All video footage releases must be accompanied by a system statement.

8.10.2 External Stakeholders/Agencies

External oversight bodies with investigative or adjudicative powers may be granted access to BWC footage/recordings in keeping with relevant legislations and protocols. The following conditions shall apply when a request is made by external stakeholders/agencies for footage:

- a. except where stipulated by law, the release of BWC video footage to the public must be granted under circumstances that will not compromise investigations.
- b. the public release of BWC video footage shall be with due regard to the safety of member(s), privacy of unconnected persons, and due process of law.

- c. members of the public who was involved in an incident where footage was recorded, external oversight, and investigative bodies desirous of retrieving video footage of a recording from the JCF may apply to the Commissioner of Police or a designee **within ninety (90) days** of the incident.
- d. this application will be reviewed, and a decision will be made within **ten (10) working days** of receipt.
- e. where approval has been granted, BWC video footage and a system statement shall be released to the public within **fifteen (15) working days** of application.
- f. video footage may be edited to conceal the identity of members, suspects, victims, or bystanders and to preserve persons' dignity, respect, and human rights.
- h. where video footage was reviewed and established that it would compromise any investigations or adversely impact the human rights or dignity of others, it should not be released.
- i. where a decision is made that video footage should not be released to the public, this information must be communicated to the applicant **within five (5) working days** of such decision, stating the reason the request was denied.

NB: The Commissioner or a designee shall decide whether video footage will be released to external stakeholders/agencies.

8.11 Accountability for BWC, related Equipment and Accessories

For proper accountability of BWCs, the following shall apply:

- 8.11.1 a master inventory of the Force's stock of BWCs will be maintained at the Technology Branch, and a local inventory will be kept at each division or formation to which BWCs are assigned.
- 8.11.2 BWC Register shall be instituted at the respective stations or locations to record the issuing and handing over of each device and related equipment and accessories.
- 8.11.3 all BWCs and related equipment and accessories activities shall be recorded in the Station Diary.
- 8.11.4 if any part of the BWC or related equipment and accessories is lost, damaged, or malfunctions, the member must immediately notify his/her supervisor and the BWC Administrator and submit a report outlining the circumstances within twenty-four (24) hours of the observation.
- 8.11.5 each member issued with a BWC shall ensure that it is operated and maintained according to the manufacturer's instructions, this policy and standard operating procedures.

8.11.6 members shall ensure the safe custody of BWCs issued to them and may be held liable for any loss or damage.

8.12 Disposal

8.12.1 Where BWCs, related equipment and accessories have become obsolete or are no longer functional, they shall be handed over to the ACP Technology Branch.

8.12.2 ACP Technology Branch or his designee shall dispose of such devices in accordance with the guidelines of the GoJ Comprehensive Asset Management Policy for the Public Sector, 2020.

9.0 Legislative Authority/Guiding Principles

This policy is in keeping with provisions contained in the Constitution of Jamaica and the following legislations and guiding principles:

- 9.1 Data Protection Act, 2020
- 9.2 The Law Reform (Zones of Special Operations) (Special Security and Community Development Measures), Act, 2017
- 9.3 Evidence Amendment Act, 2015
- 9.4 Access to Information Act, 2004
- 9.5 Evidence Act, 1997
- 9.6 Communication Forensics and Cybercrime Unit Standard Operating Procedures
- 9.7 JCF Ethics and Integrity Policy
- 9.8 Jamaica Constabulary Force Police Public Interaction Policy
- 9.9 Jamaica Constabulary Force Ethics and Integrity Policy
- 9.10 Jamaica Constabulary Force Human Rights and Police Use of Force and Firearms Policy
- 9.11 Jamaica Constabulary Force Use of Digital Media in Criminal Investigations Policy

10.0 Relevant Records

- 10.1 BWC Register



**Jamaica Constabulary Force
Body-worn Camera (BWC) Register**

ISSUING									RETURNING				
Cons No.	Date and Time Out	BWC Serial Number	Reg. No.	Rank	Name of Person Receiving	Signature of Person Receiving	Name of Person Issuing	Signature of Person Issuing	Date and Time In	Signature of Person Returning	Name of Person Receiving	Signature of Person Receiving	Remarks
1	7/Sep/2016 9:00 am	AF2B00763	13456	Cons.	J. Doe	J. Doe -	8734 Sgt. John Brown	J. Brown	7/Sep/2016 3:00 pm	J. Doe	8734 Sgt. John Brown	J. Brown	